

**SOLE SOURCE JUSTIFICATION
FOR AN ACTION EXCEEDING THE SIMPLIFIED ACQUISITION THRESHOLD
USING SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS
(AUTHORITY: FAR 13.501(a) and 41 U.S.C. 1901)
REQUIREMENTS-25-0819**

1. **Agency and contracting activity.** Department of Commerce (DOC), National Oceanic and Atmospheric Administration (NOAA), Acquisition and Grants Office (AGO), Western Acquisition Division (WAD), and Office of the Chief Information Officer (OCIO), N-Wave Program Office.
2. **Nature and/or description of the action being approved.**

This is a sole source justification for a one-year contract to bridge the gap between the Indefinite Delivery Indefinite Quantity (IDIQ) 1305M322DNAAJ0008, which expires 31 May 2025 and the new award anticipated on 31 October 2025. The anticipated contract type is a firm-fixed-price (FFP) contract with a Time & Materials (T&M) Contracting Line Item Number (CLIN) for travel. The Government intends to solicit and award this requirement to ANG Signal, LLC.

3. **Description of supplies or services required to meet the agency's needs (including the total estimated value).**

The Government requires continued support for the advanced operations, engineering, and architectural Information Technology (IT) Support Services of the N-Wave program and associated portfolio of network services. The N-Wave program plays a fundamental role in supporting NOAA's operational mission by ensuring secure, high-speed network connectivity for critical data transmission and remote collaboration among researchers, agencies, and external partners. This acquisition is essential for ensuring uninterrupted IT operations and maintaining key network services, including cloud networking, enterprise managed local area network (LAN), enterprise wireless, enterprise firewall, and enterprise remote access virtual private network (VPN). These services directly support NOAA's ability to conduct scientific research, weather forecasting, and environmental monitoring, ensuring that critical data and real-time information remain accessible to mission stakeholders. The services required under this acquisition are anticipated to be performed at multiple NOAA sites and facilities primarily within the continental U.S. Labor categories required under this acquisition include IT security specialists, network engineers, cloud computing specialists, cloud systems engineers, and IT engineers. A one-year, bridge contract is necessary in order to permit the continuation of critical IT services and prevent a gap in coverage while the follow-on requirement is being solicited and awarded competitively.

The Period of Performance (PoP) for this bridge contract is 1 April 2025 through 31 March 2026. While existing IDIQ 1305M322DNAAJ0008 has a POP that runs until 31 May 2025, the vehicle does not have ceiling available to support the program's needs. With the last remaining task order ending on 31 March 2025, the bridge will start at its completion. The bridge PoP will consist of a four-month base period, an eight-month optional period, and two optional items. The total value is estimated to be [REDACTED].

4. **Statutory authority permitting the sole source (including brand name) acquisition.**

☒ 41 U.S.C. 1901, using SAP up to \$7.5M as authorized by FAR 13.500(a) and implemented by FAR 13.501(a).

- ☐ 41 U.S.C. 1903, using SAP up to \$15M for contingency operations as authorized by FAR 13.500(c) and implemented by FAR 13.501(a).

5. Demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited.

The contracting officer has determined the following circumstances justify the use of a sole source as supported below:

Only One Source - Only one source is capable of providing the services required at the level of quality required because the services are unique and highly specialized.

This bridge contract is necessary for continuity of operations and to ensure that there is no break in service in providing critical IT support under the N-Wave program while the fully competed, follow-on requirement is being solicited and awarded. Highly specialized IT services covered under this requirement include critical IT infrastructure support for cloud-based networks, local networks, wireless connections, firewalls for security and remote network access across NOAA and DOC. Any disruptions in providing IT support for the aforementioned systems will have catastrophic impacts including network outages affecting NOAA's scientific and operational missions, failure of secure cloud connectivity impeding critical research and forecasting initiatives, disruptions in real-time data access, increased cybersecurity risks due to gaps in firewall and remote access security and loss of interoperability with research and education networks, hindering NOAA's ability to collaborate with scientific partners and government agencies.

The incumbent contractor, ANG Signal, LLC, has developed, deployed and currently operates the critical IT infrastructure and cloud-based services for the N-Wave program. ANG Signal, LLC subject-matter experts possess Tier-3 level knowledge of N-Wave's cloud, managed local area network (LAN), enterprise wireless, enterprise firewall, and enterprise remote access virtual private network (VPN) services. ANG Signal, LLC also developed and integrated N-Wave's unique cloud networking services in collaboration with Internet2, Science Research and Education Regional Optical Networks, and the Global Network Operations Center at the Indiana University. This partnership is exclusive to the science and research network community and ensures secure, high-speed connectivity for NOAA's cloud environment. ANG Signal, LLC's experience in integrating this specialized IT infrastructure is unparalleled and essential to maintaining NOAA's research and operational capabilities making it impractical for any other contractor to assume these responsibilities without extensive delays and risks.

As the incumbent contractor, only ANG Signal, LLC possesses the immediate resources, knowledge, and infrastructure to ensure complete continuity of operations. Only ANG Signal, LLC is in a unique position to provide the critical IT services at the level of quality required without causing unacceptable delays and disruption of services to the N-Wave program. The scope of work is not changing and the contractor will continue working without interruption with established staff through the bridge contract's period of performance. As a result, ANG Signal, LLC is in the best position to continue providing IT services without delay to the N-Wave program to support critical IT infrastructure across NOAA and DOC while efforts to award the fully competed follow-on requirement is underway.

6. Description of efforts made to ensure that offers are solicited from as many potential sources as practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and,

if not, which exception under FAR 5.202 applies.

In order to fulfil the requirement of FAR Subpart 5.2, a Synopsis will be posted to the Government-wide point-of-entry.

7. Determination by the contracting officer that the anticipated cost to the Government will be fair and reasonable.

Prior to award of the proposed contract, price information shall be obtained from the contractor and a price analysis will be performed and documented to sufficiently determine that the cost to the Government will be fair and reasonable. The CO determines that the price(s) will be fair and reasonable based upon price analysis techniques listed at FAR 13.106-3(a)(2)(ii), comparison of the proposed price with prices found reasonable on previous purchases, and (vi), comparison to an Independent Government Estimate. The current contract provides the Government with fair and reasonable price history to aid in determining reasonableness. The pricing of the previous contract was found fair and reasonable by way of comparison to the Independent Government Cost Estimate (IGCE) and previously paid prices. In addition to comparing the prices to those previously paid, the proposed price will be compared to the current IGCE.

8. Description of the market research conducted (see Part 10) and the results or a statement of the reason market research was not conducted.

Based on market research results, multiple small businesses can provide the IT services required under the competitive, follow-on requirement. However, due to the need for continuity of operations, only ANG Signal, LLC has the immediate specialized expertise, infrastructure and institutional knowledge required to sustain mission critical IT services required under this bridge action without causing unacceptable delays and disruption of services to the N-Wave program. Additionally, ANG Signal, LLC is a certified woman-owned small business.

9. Any other facts supporting the use of a sole source (including brand name), such as:

All facts have been documented herein.

10. List of the sources that expressed a written interest in the acquisition.

No sources have expressed a written interest in this acquisition.

11. A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required.

NOAA intends to overcome any barriers to competition by soliciting and awarding the follow-on effort for this requirement competitively through the GSA MAS. Additionally, the acquisition team will conduct extensive market research to ensure that competition is maximized for the follow-on effort.

12. Technical/Requirements Representative Certification

I certify that this requirement constitutes the Government's minimum needs and the supporting data provided herein is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

[Redacted Name]

Date

N-Wave Contracting Officer Representative

13. Office of General Counsel Review
Review

[Redacted Signature]

[Redacted Name]

Attorney

Date

Office of General Counsel

14. Contracting Officer's Certification

I certify this justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Remo Dela Cruz
Contracting Officer

Date

15. NOAA Competition Advocate Approval:

Approve

[Redacted Signature]

Binita Sharma
NOAA Competition Advocate and
Director, Policy and Oversight Division

Date